

CV-24-000417 CEJA, REGINA vs STANISLAUS COUNTY OFFICE OF EDUCATION - Final Fairness Hearing - GRANTED, and unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: The Court finds the settlement was reached after informed, arm's-length negotiations following contested litigation, is fair, reasonable, and adequate, and warrants final approval. Defendant Stanislaus County Office of Education shall pay a total of \$220,000.00 to resolve this litigation, and the Individual Settlement Payments to Settlement Class Members are approved to be paid in accordance with the Settlement. For settlement purposes only, the Court confirms certification of the Settlement Class defined as all current and former non-union classified employees who (1) were hired and began work on or before June 30, 2023; (2) prior to July 1, 2023 were paid according to a Certificated Management Salary Schedule; and (3) on and after July 1, 2023 were moved from a Certificated to a Classified Management Salary Schedule. The Court finds ascertainability, numerosity, commonality, typicality, adequacy, and superiority are satisfied and confirms appointment of Susan Lyneis and Regina Ceja as Class Representatives and class counsel as previously appointed in the Court's preliminary approval order. The Court finds the notice program, consisting of bilingual mailed notice to each Settlement Class Member following address verification procedures, was the best notice practicable, satisfied due process and California Rules of Court, rule 3.769, and provided adequate protection to class members. Notice was successfully delivered to all 40 Settlement Class Members. No class member objected to the Settlement, requested exclusion from the Settlement, or disputed his or her workweek calculation. The non-reversionary Gross Settlement Amount is \$220,000.00, from which are approved: attorneys' fees of \$73,333.33; litigation costs of \$1,357.95; Class Representative Enhancement Payments of \$5,000.00 each to Susan Lyneis and Regina Ceja (\$10,000.00 total); and Settlement Administration Expenses to Apex Class Action, LLC of \$3,990.00. After approved deductions, the estimated Net Settlement Amount of approximately \$130,676.67 shall be distributed to 40 Settlement Class Members on a pro rata basis according to qualifying workweeks during the Class Period. The average estimated settlement payment is approximately \$3,266.92, with payments ranging from approximately \$673.74 to \$4,130.33. Class Counsel is awarded attorneys' fees of \$73,333.33 and litigation costs of \$1,357.95, consistent with the Settlement and supported by counsel's lodestar showing work in excess of 225 hours and a reported lodestar of \$239,790.75, resulting in a substantial negative multiplier. The Court awards Enhancement Payments of \$5,000.00 each to Susan Lyneis and Regina Ceja for their service to the Class. The Court approves Apex Class Action, LLC's fees and expenses of \$3,990.00. The Court enters final judgment consistent with the Settlement Agreement and prior preliminary approval orders. Without affecting finality, the Court retains continuing jurisdiction over implementation, interpretation, administration, effectuation, and enforcement of the Settlement and this Order. The Court notes that the proposed order submitted for signature inadvertently contains references to a PAGA claim and PAGA-related relief. No PAGA claim is alleged in the operative complaint, no PAGA penalties are being recovered, and the Settlement contains no PAGA release. The Court has therefore stricken the PAGA-related language from the proposed order. As modified, the proposed order accurately reflects the terms of the Settlement and may be signed. In accordance with Code of Civil Procedure section 384, the Court SETS a compliance hearing for May 7, 2027, at 8:30 a.m. in Department 24, to confirm completion of settlement administration. The Settlement Administrator shall submit a compliance report no later than five court days before the hearing identifying the amount paid to Settlement Class Members, the number and value of negotiated checks, any residual funds remaining after expiration of the 180-day check-cashing period, and any cy pres distribution. Under the Settlement, any residual funds remaining after the check-cashing period shall be distributed to Court Appointed Special Advocates of Stanislaus County (CASA). If settlement administration is complete as certified by the administrator, no appearance will be necessary. Additionally, the Court orders that Notice of the Court's Final Approval Order and Judgment be posted on the Settlement Administrator's website for a period of at least 90 days.

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: 757d4bada7c9c9ebb1e0e602951acf47085a7945f63c6012652c0d7022cc2f67

CV-24-000417 - CEJA, REGINA vs STANISLAUS COUNTY OFFICE OF EDUCATION - Final Fairness Hearing - GRANTED, and unopposed.

The Court finds the settlement was reached after informed, arm's-length negotiations following contested litigation, is fair, reasonable, and adequate, and warrants final approval. Defendant Stanislaus County Office of Education shall pay a total of \$220,000.00 to resolve this litigation, and the Individual Settlement Payments to Settlement Class Members are approved to

be paid in accordance with the Settlement.

For settlement purposes only, the Court confirms certification of the Settlement Class defined as all current and former non-union classified employees who (1) were hired and began work on or before June 30, 2023; (2) prior to July 1, 2023 were paid according to a Certificated Management Salary Schedule; and (3) on and after July 1, 2023 were moved from a Certificated to a Classified Management Salary Schedule. The Court finds ascertainability, numerosity, commonality, typicality, adequacy, and superiority are satisfied and confirms appointment of Susan Lyneis and Regina Ceja as Class Representatives and class counsel as previously appointed in the Court's preliminary approval order.

The Court finds the notice program, consisting of bilingual mailed notice to each Settlement Class Member following address verification procedures, was the best notice practicable, satisfied due process and California Rules of Court, rule 3.769, and provided adequate protection to class members. Notice was successfully delivered to all 40 Settlement Class Members. No class member objected to the Settlement, requested exclusion from the Settlement, or disputed his or her workweek calculation.

The non-reversionary Gross Settlement Amount is \$220,000.00, from which are approved: attorneys' fees of \$73,333.33; litigation costs of \$1,357.95; Class Representative Enhancement Payments of \$5,000.00 each to Susan Lyneis and Regina Ceja (\$10,000.00 total); and Settlement Administration Expenses to Apex Class Action, LLC of \$3,990.00.

After approved deductions, the estimated Net Settlement Amount of approximately \$130,676.67 shall be distributed to 40 Settlement Class Members on a pro rata basis according to qualifying workweeks during the Class Period. The average estimated settlement payment is approximately \$3,266.92, with payments ranging from approximately \$673.74 to \$4,130.33.

Class Counsel is awarded attorneys' fees of \$73,333.33 and litigation costs of \$1,357.95, consistent with the Settlement and supported by counsel's lodestar showing work in excess of 225 hours and a reported lodestar of \$239,790.75, resulting in a substantial negative multiplier. The Court awards Enhancement Payments of \$5,000.00 each to Susan Lyneis and Regina Ceja for their service to the Class. The Court approves Apex Class Action, LLC's fees and expenses of \$3,990.00.

The Court enters final judgment consistent with the Settlement Agreement and prior preliminary approval orders. Without affecting finality, the Court retains continuing jurisdiction over implementation, interpretation, administration, effectuation, and enforcement of the Settlement and this Order.

The Court notes that the proposed order submitted for signature inadvertently contains references to a PAGA claim and PAGA-related relief. No PAGA claim is alleged in the operative complaint, no PAGA penalties are being recovered, and the Settlement contains no PAGA release. The Court has therefore stricken the PAGA-related language from the proposed order. As modified, the proposed order accurately reflects the terms of the Settlement and may be signed.

In accordance with Code of Civil Procedure section 384, the Court SETS a compliance hearing for May 7, 2027, at 8:30 a.m. in Department 24, to confirm completion of settlement administration. The Settlement Administrator shall submit a compliance report no later than five court days before the hearing identifying the amount paid to Settlement Class Members, the number and value of negotiated checks, any residual funds remaining after expiration of the 180-day check-cashing period, and any cy pres distribution. Under the Settlement, any residual funds remaining after the check-cashing period shall be distributed to Court Appointed Special Advocates of Stanislaus County (CASA). If settlement administration is complete as certified by the administrator, no appearance will be necessary.

Additionally, the Court orders that Notice of the Court's Final Approval Order and Judgment be posted on the Settlement Administrator's website for a period of at least 90 days.